

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: September 21, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

#	Case Name	Tentative
1	Gerald Norris King, Trustee of Gerald Norris King Trust vs. Nguyen 2026-01556411 Demurrer to Cross-Complaint CMC	Plaintiff/cross-defendant Gerald Norris King, Trustee of The Gerald King Living Trust and Cross-defendant Mai Le's (collectively Cross-defendants) Demurrer to Defendant/cross-complainant Dzung Q. Nguyen's Cross-complaint is SUSTAINED with 20 days leave to amend. Uncertain "Demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695.) As Cross-defendants do not identify how the cross-complaint is uncertain, the Court overrules the demurrer on this ground. Third cause of action for promissory estoppel

		"The elements of a cause of action for promissory estoppel are (1) a promise, (2) the reasonable expectation by the promisor that the promise will induce reliance or forbearance, (3) actual reliance or forbearance, and (4) the avoidance of injustice by enforcing the promise." (<i>Fleet v. Bank of America N.A.</i> (2014) 229 Cal.App.4th 1403, 1412.) "The vital principle is that he who by his language or conduct leads another to do what he would not otherwise have done shall not subject such person to loss or injury by disappointing the expectations upon which he acted." (<i>Jones v. Wachovia Bank</i> (2014) 230 Cal.App.4th 935, 945 [citation omitted].) Cross-defendants demur on the ground there are no allegations regarding any promises made by King. Cross-complainant alleges the cross-complaint sufficiently alleges an agency relationship between King and Le. The cross-complaint alleges "Nguyen is informed and believes, and on that basis alleges, that each Cross-Defendant was the agent, employee, servant, partner, joint venturer, alter ego, co-conspirator, or representative of each of the others, and in doing the things alleged herein acted within the course and scope of that relationship." (Cross-compl. ¶ 5.) The cross-complaint further alleges Nguyen relied on representations and promises made by Le "with King's knowledge and benefit," while "[n]o direct dialogue or correspondence took place between King and Nguyen concerning those subjects." (Cross-Compl. ¶ 11.) "An allegation of agency constitutes an averment of ultimate fact, which we accept as true on a demurrer. But where factual allegations are based on information and belief, the plaintiff must allege 'information that 'lead[s] [the plaintiff] to believe that the allegations are true.'" (<i>Brown v. USA Taekwondo</i> (2019) 40 Cal.App.5th 1077, 1106.) While Cross-complainant alleges on information and belief Cross-defendants were agents of each other, he fails to allege additional information to support that belief. The Court SUSTAINS the demurrer to the third cause of action with leave to amend. Fourth cause of action for intentional misrepresentation/ promissory fraud
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		"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 [citations omitted].) Cross-defendants demur on the ground the cross-complaint fails to allege facts representations by King and any reasonable reliance by Nguyen. As discussed above, while Cross-complainant contends he has alleged an agency relationship between King and Le, the cross-complaint does not allege sufficient facts to support the allegation of agency. The Court SUSTAINS the demurrer to the fourth cause of action with leave to amend. Sixth cause of action for constructive trust A constructive trust is an equitable remedy and not an independent cause of action. (See <i>Shoker v. Superior Court of Alameda County</i> (2022) 81 Cal.App.5th 271, 278 [citations omitted]; but see <i>Higgins v. Higgins</i> (2017) 11 Cal.App.5th 648, 659, fn. 2.) Cross-complainant may request this remedy as part of a substantive cause of action. The Court SUSTAINS the demurrer to the sixth cause of action with leave to amend to amend.
2	Nano Banc vs. Cantor Group, III, LLC 2025-01496226 Demurrer to Amended Cross Complaint CMC	Plaintiff/Cross-Defendant Nano Banc's (Plaintiff) Demurrer to the First Amended Cross-Complaint (FACC) of Defendant/ Cross-Complainant Cantor Group III (Defendant) is OVERRULED. Plaintiff's request for judicial notice of Court records and County Recorder's Office records (ROA 143) is granted. (Evid. Code § 452(c), (d).) Legal Standard: At the pleading stage, the Court must liberally construe the complaint, drawing all reasonable inferences in favor of Plaintiffs' asserted claims. (<i>Liapes v. Facebook, Inc.</i> (2023) 95 Cal.App.5th 910, 919.) "[C]ourts may not turn a demurrer into a contested evidentiary matter by determining what the proper interpretation of the evidence is. A court errs when its decision reflects such a consideration of the evidence." (<i>Panterra GP, Inc. v. Superior Court of Kern County</i> (2022) 74 Cal.App.5th

	697, 711.) "A demurrer must dispose of an entire cause of action to be sustained. Thus, a court must overrule a demurrer to a cause of action if it is based on at least one viable theory of liability." (<i>Thompson v. Spitzer</i> (2023) 90 Cal.App.5th 436, 451–452.) "A plaintiff is permitted to plead alternative inconsistent theories." (<i>Dubin v. Robert Newhall Chesebrough Trust</i> (2002) 96 Cal.App.4th 465, 477.) Summary of FACC: The FACC of Defendant (also referred to as "Borrower") is generally based on the following allegations: "This is an action for damages and equitable relief arising out of a concerted and escalating pattern of bad-faith conduct, misrepresentations, and targeted sabotage by the Bank and its senior executives—conduct aimed at harming Borrower and other affiliated borrowers. Despite commitments to restructure and modify a loan facility, the Bank, acting through certain senior officials, obstructed performance, fabricated loan impairments, refused valid borrower payments, and manipulated financial records to facilitate an insider-friendly sale of the Bank. The Bank manufactured a default of the loan facilities at issue in this action by making false promises of prompt restructuring and extension of maturity on improved terms, among other things, and then refused to honor those promises." (¶ 2.) Specifically, Defendant alleges in 2024 it took out commercial loans from Plaintiff secured by deeds of trust in real property in Garden Grove. (¶¶ 12-17.) The parties entered loan modification/extension agreements in late 2024/2025. (¶¶ 18-27.) Defendant alleges these were represented by Plaintiff to be "interim" agreements which would be followed by a further restructuring/extension of the loans more favorable to Defendant. (<i>Id.</i>) However, after the initial modification documents were signed, Plaintiff engaged in an "abrupt reversal" and refused to proceed with the "promised restructuring." (¶¶ 28-31.) Defendant alleges Plaintiff's conduct was part of a scheme by Plaintiff's former Chief Credit Officer Mr. Meitzen to undermine borrowers with ties to a certain consultant (Continuum and Mr. Makhijani), which Meitzen allegedly hoped would help him devalue Defendant's shares, acquire shares at depressed prices, and become CEO. (¶¶ 20, 35-37.) The alleged scheme has included engaging in false and punitive risk assessments for existing loans and refusal to accept valid payments tendered by Defendant. (¶¶ 38-46.) First Cause of Action - Breach Of Contract: The elements of this claim are "(1) the existence of the contract, (2) plaintiff's performance or excuse for
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	nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (<i>D'Arrigo Bros. of California v. United Farmworkers of America</i> (2014) 224 Cal.App.4th 790, 800.) Here, Defendant alleges it has fully performed and/or was excused from performance for its obligations under the loans issued by Plaintiff, but "Cross-Defendant breached the Loan Agreements by willfully and unreasonably refusing to accept valid loan payments and improperly placing Borrower in default of the Loan Agreements." (§ 51.) Plaintiff contends the language of the loan agreements defeats Defendant's claim because the agreements gave it the right to declare default and accelerate the loans if Defendant missed a payment. Plaintiff argues it is undisputed that Defendant defaulted. (Motion, p. 2 and Req. for Jud. Notice, Exs. 2 & 3.) At the pleading stage, however, Defendant has adequately pled Plaintiff's wrongful failure to accept payments and improper placement of Defendant in default, resulting in damages including reputational harm and economic harm related to the loans. Therefore, the demurrer is overruled as to this claim. Second Cause of Action - Breach of Covenant of Good Faith and Fair Dealing; Plaintiff contends this claim is duplicative because it is based on the same allegations as the first claim. However, Defendant has adequately alleged facts which could demonstrate Plaintiff engaged in conduct that frustrated Defendant's ability to receive the benefits of the loan, i.e. refusal to accept Defendant's payments. Therefore, the demurrer is overruled as to this claim. Third Cause of Action - Breach of Implied-In-Fact Contract: This claim is based on Plaintiff's alleged oral misrepresentations that if Defendant completed the "interim" loan modification agreements, Plaintiff would restructure the loans more favorably to Defendant. Defendant alleges it engaged in the initial steps pursuant to the parties' agreement but Plaintiff failed to proceed with restructuring. Plaintiff argues this claim is barred by the statute of frauds, which requires a contract involving an interest in real property to be in writing. (Civ. Code § 1624.) "An implied-in-fact contract is based on the conduct of the parties. (Civ.Code, § 1621.) Like an express contract, an
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	implied-in-fact contract requires an ascertained agreement of the parties. Whether an implied contract exists is usually a question of fact for the trial court. Where evidence is conflicting, or where reasonable conflicting inferences may be drawn from evidence which is not in conflict, a question of fact is presented for decision of the trial court.” (<i>Unilab Corp. v. Angeles-IPA</i> (2016) 244 Cal.App.4th 622, 636.) In opposition, Defendant asserts that, at the pleading stage, Plaintiff has not shown there is no writing reflecting the alleged agreement that could satisfy the statute of frauds. Defendant also argues Civil Code section 1698 estops application of the statute of frauds where doing so would cause unjust enrichment. Construing Defendant’s allegations in a favorable light for purposes of this motion, Defendant has adequately pled an implied-in-fact contract and Plaintiff’s breach thereof which may fall outside the statute of frauds assuming Defendant’s allegations are true. Fourth Cause of Action - Fraudulent Misrepresentation: This claim is based on Plaintiff’s alleged misrepresentations regarding the loan modification summarized above. The elements of fraud are, “(1) a representation, (2) that is false, (3) made with knowledge of its falsity, and (4) with an intent to deceive, coupled with (5) actual detrimental reliance and (6) resulting damage.” (<i>Lim v. The.TV Corp. Internat.</i> (2002) 99 Cal.App.4th 684, 694.) Plaintiff asserts Defendant has failed to plead specific facts regarding the alleged fraudulent statements by Plaintiff’s representatives. Moreover, Plaintiff argues the claim is barred by the economic loss rule, which generally precludes tort claims arising from breach of a contract where there is a contractual remedy that could be pursued. (See <i>Sheen v. Wells Fargo Bank, N.A.</i> (2022) 12 Cal.5th 905, 923 [no liability in tort for economic loss caused by negligence in performance or negotiation of a contract between the parties].) “[S]uch claims are barred when they arise from — or are not independent of — the parties’ underlying contracts.” (<i>Ibid.</i>) Here, Defendant has adequately pled the substance of the alleged fraudulent statements and Defendant’s reliance thereon. The claim is sufficiently distinct from Defendant’s contract claim to avoid the economic loss rule at the pleading stage, because it involves alleged fraudulent inducement for Defendant to sign the modification documents rather than breach thereof. Defendant
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		adequately alleges Plaintiff made the representations regarding future restructuring knowing they were false at the time. Defendant is not required to plead the exact date and time of each communication at this stage. Fifth Cause of Action - Negligent Misrepresentation: This claim arises from the same facts as the fourth cause of action but alternatively pleads that Plaintiff's misrepresentations were negligent. The demurrer is overruled as to this claim for the same reasons as the fourth cause of action. Sixth Cause of Action - Violations of Business & Professions Code § 17200: To allege a UCL claim, Defendant must merely plead business conduct that is unlawful, unfair, or fraudulent. (Bus. & Prof. Code § 17200.) As discussed above, Defendant adequately alleges fraudulent conduct regarding the loan modification and restructuring to support a UCL claim.
3	Larson vs. Murphy 2025-01485707 Demurrer to 2nd Amended Complaint Motion to Strike Portions of 2nd Amended Complaint	Defendants Timothy Murphy, Julianne Murphy, and The Murphy Family Trust's Demurrer to the Second Amended Complaint and Motion to Strike is CONTINUED to November 30, 2026, at 1:45 p.m. in department C-15. The parties/counsel have not engaged in sufficient attempts to meet and confer. Defendant is required to meet and confer "in person, by telephone, or by video conference" before filing a demurrer and motion to strike. (Code Civ. Proc., §§ 430.41, 435.5.) No such meet and confer happen here. (See Guarena Decl., ¶¶ 2-5, Exs. 1-4; Shirazi Decl., ¶¶ 3-13, Exs. A-J.) The parties/counsel are ORDERED to engage in additional attempts to meet and confer in person, by telephone, or by video conference regarding the issues raised in the demurrer and motion to strike. Counsel shall discuss whether a third amended complaint would resolve some or all of the issues raised in the demurrer and motion. If so, the parties should submit a stipulation to file an amended complaint. No later than five court days before the continued hearing date, defendants' counsel is ORDERED to file a supplemental declaration describing compliance with this order, including whether any issues were settled by the code compliant meet and confer efforts.

		Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5.
4	Radcliffe vs. Sharma 2026-01561060 Demurrer to Complaint Motion to Strike Portions of Complaint	Defendants Nina Sharma, D.D.S. and Nina Sharma DDS Inc.'s (NSDI) Demurrer to the Complaint is overruled. "The primary right theory has a fairly narrow field of application. It is invoked most often when a plaintiff attempts to divide a primary right and enforce it in two suits. The theory prevents this result by either of two means: (1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement or (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata. The latter application of the primary right theory appears to be most common: numerous cases hold that when there is only one primary right an adverse judgment in the first suit is a bar even though the second suit is based on a different theory or seeks a different remedy." (<i>Crowley v. Katleman</i> (1994) 8 Cal.4th 666, 682.) None of the causes of action improperly split a single cause of action into separate causes of action. They all seek damages for separate conduct: the negligence claim alleges Defendants performed the procedure negligently, the fraud claims allege Defendants misrepresented the extent of the procedure, and the violation of the code sections are distinct causes of action authorized by the Legislature. Thus, the demurrer is overruled on this ground. 2nd and 3rd Causes of Action – Intentional and Negligent Misrepresentation "The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638.) "In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus, the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (Id. at 645.) "A plaintiff's burden in asserting a fraud claim against a

	corporate employer is even greater. In such a case, the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (<i>Ibid.</i>) Plaintiff has sufficiently alleged her fraud claim with particularity. The Complaint attributes the alleged misrepresentations to the "DDS Defendants" which is defined as all Defendants. Thus, it is reasonable to conclude Plaintiff is alleging Sharma herself and on behalf of NSDI and Lantzsch herself and on behalf of Noni made the false representations during the December 7, 2024 treatment. The allegation itself is sufficient to pass the pleading stage. Thus, the demurrer is overruled as to the 2nd and 3rd causes of action. 4th Cause of Action – Violation of Bus. & Prof. Code, § 654.3 "Before arranging for or establishing credit or a loan extended by a third party, a licensee shall give a patient a written treatment plan that complies with all of the following: [¶] (1) The treatment plan shall include each anticipated service to be provided and the estimated cost of each service." (Bus. & Prof. Code, § 654.3(h)(1).) Plaintiff has sufficiently alleged a violation of Section 654.3 against Sharma and NSDI. Defendants claim Plaintiff may not refer to the Defendants generally and must specifically identify the licensee. However, there is no requirement in the section that only one entity or individual may be a licensee. Thus, Plaintiff may name all Defendants as licensee for the purposes of the pleading stage. Thus, the demurrer is overruled as to the 4th cause of action. 5th Cause of Action – Unfair Business Practices "The scope of section 17200 is broad, encompassing anything that can properly be called a business practice and that at the same time is forbidden by law." (<i>Linear Technology Corp. v. Applied Materials, Inc.</i> (2007) 152 Cal.App.4th 115, 133.) Business and Professions Code, section 17200 ("UCL") prohibits "unfair competition," which is defined to include "any unlawful, unfair or fraudulent business act or practice" and "unfair, deceptive, untrue or misleading advertising" and any act prohibited by Section 17500." (<i>Gutierrez v. Carmax Auto Superstores California</i> (2018) 19 Cal.App.5th 1234, 1261.)
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Plaintiff has adequately alleged a cause of action for unfair competition. She has adequately alleged a claim of fraudulent conduct which is alleged to also deceive the public. Additionally, she has alleged an unlawful practice of violating Business and Professions Code section 654.3. Thus, Plaintiff Defendants demurrer is overruled as to the 5th cause of action.

Motion to Strike

Defendants Nina Sharma, D.D.S. and Nina Sharma DDS Inc.'s Motion to Strike Portions of the Complaint is GRANTED in part and OVERRULED in part.

Paragraph 44, page 8, lines 1 through 4; Paragraph 53, page 10, lines 1 through 5; and Paragraph 58, page 11, lines 9 through 13; and Paragraph 7, page 11, lines 26 through 27 of the Prayer are ORDERED stricken. Additionally, the reference to Section 17200 in Paragraph 57 is ORDERED stricken.

Plaintiff alleges "DDS Defendants' conduct as described herein, was malicious and oppressive and done with a conscious disregard of Plaintiff's rights and safety. Thus, Plaintiff is entitled to punitive damages against DDS Defendants under California Civil Code section 3294." Plaintiff's allegations of malice or oppression are conclusory and insufficient. She alleges no ultimate facts to support her claim. Thus, these allegations are stricken.

Plaintiff alleges "[p]ursuant to Business and Professions Code sections 654.3 and 1780, Plaintiff is entitled to...punitive damages." Business & Professions Code sections 654.3 permits punitive damages under subdivision (k) which authorizes remedies prescribed in Civil Code section 1780 which includes

punitive damages. (Civ. Code, § 1780(a)(4).) Thus, this portion is not stricken.

Plaintiff also alleges "[b]ecause of Defendants['] breaches and violations of Business and Professions Code sections 654.3 and 17200, et seq., Plaintiff is entitled to...punitive damages." Business and Professions Code section 17200 does not have a similar provision. Thus, the reference to Section 17200 is stricken.

Plaintiff's request for punitive damages in the prayer is not stricken because Plaintiff has sufficiently alleged a claim for fraud.

Plaintiff's request for attorney's fees is stricken because Plaintiff alleges no basis for recovery of those fees.

5	McCrea vs. Riemann 2024-01417305 Motion to be relieved as counsel of record as to 520 Capital, LP Motion to be relieved as counsel of record as to 520 Capital, LLC	The motion of attorney Stanley Gordon and Gordon & Reynolds Law Firm to withdraw as attorney of record for Defendants 520 Capital LKP and 520 Capital, LLC is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on clients. Moving attorney is to give notice.
6	Sui vs. Kexin USC, Inc. 2025-01452561 Motion to Compel Further responses to Production, Set 1	Plaintiff Honsong Sui's Motion to Compel Further Responses to Request For Production of Documents (Set One) is DENIED as moot. The parties were ordered to submit a joint status report regarding any remaining disputes related to the Motion. No status report was filed. Thus, the Court assumes no issues remain and the Motion is moot.
7	Maehara vs. Prime Healthcare La Palma, LLC 2026-01542089 Motion to Compel Arbitration CMC OSC re Sanctions for Failure to Properly Serve	Defendants' Motion to Compel Arbitration is GRANTED. Legal Standard: "General principles of contract law determine whether the parties have entered a binding agreement to arbitrate." (<i>Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC</i> (2012) 55 Cal. 4th 223, 236.) "Generally, an arbitration agreement must be memorialized in writing." (<i>Id.</i>) "A party's acceptance of an agreement to arbitrate may be express, as where a party signs the agreement," but "[a] signed agreement is not necessary, however, and a party's acceptance may be implied in fact[.]" (<i>Id.</i>) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (<i>Id.</i>) Application of EFAA: Defendant moves to compel arbitration under the arbitration agreement signed by Plaintiff as part of her onboarding as a Nursing Director. (Defendant's Ex. A.) Plaintiff does not deny executing the agreement but contends the agreement violates the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA). The EFAA generally bars binding arbitration agreements as applied to sexual harassment claims. (See <i>Liu v. Miniso Depot CA, Inc.</i> (2024) 105 Cal.App.5th 791.)

	The EFAA states in part at 9 U.S.C. § 402(a), “at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute. . . no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” The EFAA became effective on 3/3/22. “Federal district court decisions have interpreted the EFAA to apply only where the plaintiff’s sexual harassment related claims are capable of surviving a challenge at the pleading stage, because without such a procedural safeguard a plaintiff could avoid complying with an otherwise valid arbitration agreement by simply adding a baseless sexual harassment claim. [Citation] This appeal does not require us to opine on what threshold, if any, a plaintiff’s sexual harassment related claims must meet before the EFAA becomes applicable because there is no dispute that Liu has adequately pleaded at least two sexual harassment related claims.” (<i>Liu, supra</i>, 105 Cal.App.5th at p. 799, fn. 2.) The language of the EFAA does not reflect an intent to exclude all claims tangentially related to gender discrimination from arbitration, but those arising from “sexual assault” or “sexual harassment” against the plaintiff. Here, Plaintiff generally alleges one of her direct reports became pregnant in 2023. (Complaint, ¶ 21.) Defendant’s CEO allegedly engaged in discrimination against the pregnant employee, who is not a party to this case. (<i>Id.</i>) Plaintiff alleges she suffered retaliation and termination as a result of Plaintiff’s attempts to provide pregnancy accommodations to the pregnant employee and to push back against perceived discrimination against the employee. (¶¶ 21-24.) Plaintiff does not allege that she personally was subject to sexual harassment such as sexual comments or touching. Plaintiff also fails to allege a sexually hostile environment claim, which requires pleading sexually harassing conduct that is “severe or pervasive.” (See Gov. Code § 12940(j)(4)(c); CACI 2521A; <i>Hughes v. Pair</i> (2009) 46 Cal. 4th 1035, 1043.) Plaintiff fails to cite legal authority broadly interpreting the EFAA to govern any claim involving gender or pregnancy-related discrimination, including claims where the Plaintiff herself does not claim to have personally been the subject of sex harassment or discrimination but merely to have spoken up against it. The Court declines to apply the EFAA so broadly in the absence of any binding
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	decisions supporting Plaintiff's broad interpretation of the law. Unconscionability: "[U]nconscionability has both a 'procedural' and a 'substantive' element, the former focusing on 'oppression' or 'surprise' due to unequal bargaining power, the latter on 'overly harsh' or 'one-sided' results." (<i>Armendariz v. Found. Health Psychcare Servs., Inc.</i> (2000) 24 Cal. 4th 83, 114.) "The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (<i>Id.</i>) "But they need not be present in the same degree." (<i>Id.</i>) "Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves." (<i>Id.</i>) "In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (<i>Id.</i>) The Court should consider five factors to determine whether an arbitration agreement is enforceable in the employment context. (<i>Id.</i> at 102.) The agreement must: 1) provide for a neutral arbitrator; 2) provide for more than minimal discovery; 3) require the arbitrator to issue a written decision; 4) provide for the same remedies that would otherwise be available to the employee in court; and 5) not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum. (<i>Id.</i>) California courts have held an individual's failure to read or understand the terms of an arbitration agreement does not alone render it unconscionable. (See <i>Brookwood v. Bank of America</i> (1996) 45 Cal.App.4th 1667, 1674.) Failure to provide a copy of the rules or clearly identify the rules so that the employee could locate them may give rise to a finding of unconscionability. (See <i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal.App.4th 227, 245 [finding moderate level of procedural unconscionability based on adhesive nature and failure to attach or identify governing rules in employment context].) "It is well settled that adhesion contracts in the employment context, that is, those contracts offered to employees on a take-it-or-leave-it basis, typically contain some aspects of procedural unconscionability. Assuming the Agreement here is adhesive in character, this
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		adhesive aspect of an agreement is not dispositive. Courts have observed that when, as here, there is no other indication of oppression or surprise, the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high. (<i>Peng v. First Republic Bank</i> (2013) 219 Cal.App.4th 1462, 1470.) Here, Plaintiff contends the agreement is unconscionable because Plaintiff had little opportunity to review the arbitration agreement and it contains terms Plaintiff contends are more favorable to the employer involving injunctive relief, discipline and discharge, and limits appellate review. California courts have generally upheld similar arbitration agreements in the employment context, even when they are required as a condition of employment. As applied to this case, Plaintiff has not shown the agreement improperly favors Defendant, and to the extent the arbitration terms are vague or could be construed to violate California law, the arbitrator must construe the agreement consistent with existing law. Therefore, the motion is granted.
8	Loeffler vs. Association Lien Services, Inc. 2016-00873201 Motion to Tax Costs	On 7/6/26, the Court granted Judgment debtor Jennier Loeffler's Motion to Tax Costs in an amount to be determined after the Court received further information. (ROA 1237.) The Court ordered Loeffler to file a supplemental declaration setting forth a corrected calculation of interest five court days before this hearing, which Loeffler timely filed on 9/14/26. (ROA 1267.) Based on the Loeffler's Supplemental Declaration, the Court TAXES costs in the amount of \$56,195.58.
9	Espinosa vs. Atkin 2025-01457170 Motion for Terminating Sanctions CMC OSC re Failure to Comply with CRC 3.110 (b)	Defendants Oil Crew Services Inc. and Christopher Otken's motion for terminating sanctions against plaintiff Luis Escalera Espinosa is DENIED without prejudice. "[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) "[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) Defendants have shown Plaintiff violated the Court's 5-12-26 Order compelling Plaintiff to serve responses to

		Defendants' Form Interrogatories (Set One); Special Interrogatories (Set One One); Request for Production of Documents (Set One), and to pay monetary sanctions of \$6,400. (Reddicono Decl., ¶13, Ex. 10.) Notice of the ruling was served by the court clerk by mail on Plaintiff. However, to date, Plaintiff has not complied with the Court's 5-12-26 Order. (Reddicono Decl., ¶14.) Defendants have also shown Plaintiff failed to appear at an Informal Discovery Conference ("IDC") or comply with the court's orders requiring the parties to meet and confer regarding the discovery issues prior to the IDC. (Reddicono Decl., ¶¶ 8-11.) Although Defendants have shown Plaintiff has violated the Court's prior orders, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate prior to imposition of terminating sanctions. Accordingly, Defendants' request for terminating sanctions is DENIED. Plaintiff is ORDERED to comply with the Court's 5-12-26 Order within 20-days' notice of this ruling. The Court warns Plaintiff that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions. Defendants to give notice.
10	Dominguez vs. Radovic 2025-01469557 Motion to Enforce Settlement Status Conference	Defendant Sonja Radovic's Motion to Enforce Settlement Agreement is GRANTED. Plaintiff's service of the opposition Plaintiff did not file a signed proof of service showing the opposition was served on Defendant. (See Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As Defendant filed a timely reply, Defendant does not appear to have been prejudiced by Plaintiff's failure to do so. In the future, the Court may decline to consider documents unaccompanied by the required proof of service. Defendant's request for judicial notice Defendant requests judicial notice of the following documents: - Exhibit A – A Criminal Protective Order – Domestic Violence issued to Plaintiff by the Orange County Superior Court on 5/11/26; and - Exhibit B – Substitution of Attorney filed by Plaintiff's former counsel on 7/9/26.

	A court may take judicial notice of records of any court of this state, of the United States, or of any state of the United States. (Evid. Code § 452, subd. (d).) While “[a] court may take judicial notice of the existence of each document a court file, [it] can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.” (<i>People v. Thacker</i> (1985) 175 Cal.App.3d 594, 599 [citation omitted, italics in original].) The Court GRANTS Defendant’s request for judicial notice. Defendant’s evidentiary objections to the Declaration of Servando Dominguez Defendant’s evidentiary objections are SUSTAINED as to objection number 2 and OVERRULED as to the remaining objections. Legal standard Code of Civil Procedure section 664.6, subdivision (a) provides: “If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” “A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on the motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to ‘enter judgment pursuant to the terms of the settlement.’” (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182-1183.) Analysis Defendant seeks to enforce a Settlement Agreement between the parties. (Gold Decl., ¶ 6, Ex. 1.)
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	On 6/10/26, the parties engaged in a mediation where Plaintiff was represented by counsel. (Gold Decl., ¶¶ 5.) During the mediation, the parties agreed on settlement terms and signed a Settlement Agreement. (Gold Decl., ¶ 6, Ex. 1.) Per the terms of the Settlement Agreement, within thirty days following its execution, Plaintiff was to provide the names of three proposed licensed real estate agents/brokers so the parties could list the property at issue for sale. (Gold Dec., ¶ 6, Ex. 1.) Plaintiff has not done so. Plaintiff contends that while the face of the Settlement Agreement signature page reflects a 6/10/16 date for both Plaintiff and Defendant, the document's Adobe Acrobat Sign Final Audit Report reflects an electronic signature date of 6/10/26 for Plaintiff and 6/18/16 for Defendant. (Opp. at 4:12-17.) Plaintiff states, however, he "does not contend that the later defense signature, by itself, invalidates the settlement," but asks the Court to use the "authenticated transaction history" rather than the dates printed on the signature page. (Opp. at 4:17-19.) Plaintiff "acknowledges that his electronic signature attributed to him in the June 2026 Deal Memo/Settlement Agreement is his" and "does not contend that electronic signatures are ineffective." (Opp. at 2:7-10.) As such, the Court does not find any alleged discrepancy with the date of Defendant's signature affects its determination of whether the parties entered into a valid settlement. Plaintiff then contends his medical condition during the time of execution should be considered to determine whether he consented to the Settlement Agreement. Plaintiff states, "During the period surrounding the settlement I was not taking medication that I normally took, and I believed at the time this affected my ability to process the proceedings and exercise independent judgment." (Dominguez Decl., ¶ 4.) While Plaintiff further contends Defendant's discovery responses also noted Plaintiff's "addict-like behavior" and having "self-medicated," Plaintiff himself disputes this characterization. (Opp. at 5:4-9.) Plaintiff relies on pharmacy records to demonstrate "an established treatment history and prescribed medications" predating the June 2026 settlement and states it does not show a June refill before the Settlement Agreement was executed. (Opp. at 4:21-25.) Other than these pharmacy records which have not been properly authenticated, Plaintiff does not submit any medical records or other evidence of incapacity at the
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	time of mediation or when the Settlement Agreement was signed. He does not provide any further information as to the medical issues he was experiencing or the ways in which they impacted his ability to proceed with the mediation or settlement discussions. Additionally, there is no evidence these issues were raised at the mediation by Plaintiff or his counsel at the time or that any parties to the mediation, including the mediator, perceived any inability by Plaintiff to participate in the mediation. Plaintiff also relies on a post-settlement communication from his counsel dated 6/23/26 that states in part, "You have asserted, for the first time twelve days after the mediation concluded that you were not taking medication you normally take and that this affected your ability to process the proceedings." (Dominguez Decl., ¶ 8, Ex. C.) Plaintiff contends he relies on this email to demonstrate "the timing of when [he] raised this concern rather than for any medical conclusion." (Dominguez Decl., ¶ 8.) As Plaintiff recognizes, the first time he raised any issue with his medication was almost two weeks after the mediation had concluded. While Plaintiff was represented by counsel during the mediation, Plaintiff concedes he did not raise the issue of his medication with counsel at any point prior to or during the mediation. Based on the above, the Court finds the parties entered into an enforceable settlement. Plaintiff's request for an evidentiary hearing Plaintiff requests an evidentiary hearing on the issues of his medical condition and the authenticity of the Settlement Agreement. Section 664.6 does not require a trial court to conduct a full evidentiary hearing to make its determination. Rather, "[i]n making this determination trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone." (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994.) Plaintiff acknowledges the electronic signature attributed to him (Dominguez Decl., ¶ 2) and does not contend the signatures on the Settlement Agreement are invalid. Plaintiff also does not dispute he was represented by counsel during the mediation and settlement discussions and did not raise the issue of his medical conditions or medication at any point prior to or during those proceedings. Plaintiff also submits a declaration that refers to a history of psychiatric treatment but does not include any further information as to his medical conditions or how they specifically impacted his ability to proceed with the mediation and settlement discussions.
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		In ruling on the motion, the Court may rely on the parties' declarations and other admissible evidence alone. Given the above, the Court denies Plaintiff's request for an evidentiary hearing. Attorneys' fees and costs Defendant requests \$3,653.70 in attorneys' fees and costs incurred to enforce the settlement. (Gold Decl. ¶ 12.) Section 7(b) of the Settlement Agreement provides if "any action, proceeding, motion, or other effort is commenced to enforce, interpret, or remedy a breach of any term or provision of this Agreement, the prevailing party shall be entitled to recover from the non-prevailing party all reasonable attorneys' fees and costs incurred in connection therewith" (Gold Decl., Ex. 1.) Accordingly, the Court GRANTS Defendant Sonja Radovic's Motion to Enforce Settlement Agreement and Defendant's request for attorneys' fees and costs in the amount of \$3,653.70.
11	Doe vs. Orange County Unified School District 2024-01395575 Motion for Summary Judgment and/or Adjudication	Defendant Orange Unified School District's motion for summary adjudication of plaintiff John Doe's cause of action for negligence per se is DENIED. Defendant seeks summary adjudication of the following issue: Plaintiff's Negligence Per Se cause of action fails because Maria Vicencio had no mandatory duty to report under CANRA, as her observations arose outside the scope of her employment and in her private capacity. Procedural Defects: First, Plaintiff argues the Motion is untimely. Code of Civil Procedure section 437c, subdivision (a)(3) states in pertinent part: "The motion shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (Code Civ. Proc., § 437c, subd. (a)(3); see also Robinson v. Woods (2008) 168 Cal.App.4th 1258, 1268 ["Defendants noticed their motion for hearing within 30 days of the trial date without first obtaining a determination of good cause from the trial court," and "[u]nless and until the trial court found good cause, the notice of the hearing was invalid."].) Although trial was initially set for September 28, 2028, on 9-16-26, the Court continued the trial to 1-4-27. (ROA 187.) Therefore, the Motion is timely. Second, Plaintiff contends the issue as framed seeks to dispose of a part of a single cause of action and summary

	adjudication can only be granted as to the entire cause of action. Section 437c, subdivision (f)(1) states in pertinent part: "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." Plaintiff argues the third cause of action alleges "Negligence and Negligence Per Se" and Defendant only seeks adjudication of negligence per se allegations and not the entire negligence cause of action. "Negligence per se is an evidentiary doctrine, rather than an independent cause of action." (<i>Jones v. Awad</i> (2019) 39 Cal.App.5th 1200, 1210–11.) "The doctrine does not provide a private right of action for violation of a statute. [Citation.] Instead, it operates to establish a presumption of negligence for which the statute serves the subsidiary function of providing evidence of an element of a preexisting common law cause of action." (<i>Quiroz v. Seventh Ave. Ctr.</i> (2006) 140 Cal.App.4th 1256, 1285–1286.) Negligence per se "can be applied generally to establish a breach of due care under any negligence-related cause of action. (<i>Norman v. Life Care Centers of America, Inc.</i> (2003) 107 Cal.App.4th 1233, 1248.) Here, Plaintiff's claim for negligence is based upon theories of common-law negligence, or in the alternative, negligence per se. Thus, even if the Court were to dismiss the claim to the extent it relies upon negligence per se, the negligence claim would survive, since Defendant has not argued that Plaintiff cannot state a claim for negligence. Further, under Quiroz there isn't an independent negligence per se cause of action that the court can summarily adjudicate. Defendant contends that because the negligence per se doctrine turns on a statutory duty, what Defendant presents is an "issue of duty." Although section 437c, subdivision (f)(1) allows a party to move for summary adjudication as to "one or more issues of duty," the Issue as framed by Defendant seeks adjudication of "Negligence Per Se cause of action" not merely to adjudicate the issue of a mandatory duty to report. Specifically, Defendant's Notice of Motion moves "for an order granting summary adjudication, of Plaintiff's cause of action for negligence per se as set forth in the operative complaint." (Notice, 1:27-28.)
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		Therefore, the Court cannot grant summary adjudication of the issue as framed by Defendant and declines to reach the merits. Moving party to give notice.
12	Goldman vs. Pancho's Restaurant 2024-01408882 Motion for Summary Judgment and or Adjudication	Plaintiff Cheyenne Goldman's Motion for Summary Judgment, or in the alternative, Summary Adjudication is DENIED. Plaintiff has asked the court to enter partial summary judgment-summary adjudication-on the issue of whether Defendants violated various California Labor Codes and IWC Wage Orders, leaving damages to be tried. Specifically, in her notice of motion, Plaintiff requests an order granting partial summary judgment or, in the alternative, summary adjudication of the ninth, tenth, eleventh, and twelfth causes of action. In the "Conclusion" section of the motion and the reply, Plaintiff explains that "[i]n so doing, the Court would limit the remaining issues for trial on those causes of action to the calculation of damages." (Motion at p. 15:19-20; Reply at p. 10:22-23 [emphasis added].) In her reply Plaintiff also states, "Whether the number of noncompliant shifts is 164 [Citation] or some other figure is a question of damages for trial, which is how Plaintiff framed the motion. [Citation.]" (Reply at p. 3:23-25 [emphasis added].) As an initial matter, "there is no such creature as 'partial summary judgment' in California; the proper term is 'summary adjudication.' [Citation]." (<i>Paramount Petroleum Corp. v. Superior Court</i> (2014) 227 Cal.App.4th 226, 243.) More importantly, Plaintiff's requested relief is improper. "[T]here [is] no statutory basis for such an order. As we have explained, the governing statute provides that a plaintiff can only obtain summary adjudication of a cause of action if the plaintiff establishes each element of the cause of action entitling it to judgment on that cause of action. The court specifically held that '[a] decision on the issue of liability against the party on whom liability is sought to be imposed does not result in a judgment until the issue of damages is resolved.' [Citation.] Therefore, such a summary adjudication would be improper. We fully agree with the court's reasoning." (<i>Paramount Petroleum Corp., supra</i>, 227 Cal.App.4th at p. 243 [breach of contract case], quoting <i>Department of Industrial Relations v. UI Video Stores, Inc.</i>(1997) 55 Cal.App.4th 1084, 1097; Code Civ. Proc., § 437c, subd. (f)(1) ["A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty."].)

		Here, Plaintiff's requested relief clearly leaves the issue of damages to be resolved at trial. The motion is denied.
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